

Court No. - 5

Case :- WRIT - C No. - 13883 of 2020

Petitioner :- Santosh Kumar Jaiswal

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vinod Kumar Srivastava

Counsel for Respondent :- C.S.C.,Amit Krishna,Mahboob Ahmad

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Mahboob Ahmad, learned counsel for respondent nos. 3,4 and 5.

This writ petition has been filed praying for the following relief:

"(i) issue a writ, order or direction in the nature of writ of mandamus commanding to concerned respondent electricity authorities to restore the Electricity Service Connection No.2259811000 in the premises of petitioner in House No.18/8, Digiya Jaitpura, Varanasi within 24 hours in the interest of justice.

(ii) issue a writ, order or direction in the nature of writ of mandamus commanding to get the electricity bills of petitioner revised/corrected and to issue a fresh electricity bill to the petitioner within reasonable time.

(iii) issue a writ, order or direction in the nature of writ of mandamus commanding to allow the petitioner to deposit the outstanding bill amount, after correction of bill, in easy installments without any penal charges/interest within reasonable time fixed by this Hon'ble Court.

(iv) issue any other suitable writ, order or direction as this Hon'ble Court may deem fit and proper under the facts and circumstances of the case."

Learned counsel for the petitioner submits that his electricity bills may be corrected which may be allowed to be paid in installments and his electricity connection be restored.

Sri Mahboob Ali, learned counsel for respondent nos. 3,4 and 5, states that the grievance of the petitioner with regard to correction of bills and installments, shall be considered by the respondent no.4 and an appropriate order in accordance with law, shall be passed within a week in terms of the provisions of Clause-6.5 and 6.14 of U.P. Electricity Supply Code,2005.

In view of the statement made by the learned counsel for the respondent nos. 3,4 and 5, we dispose of this writ petition with a direction to the respondent no.4 to redress the grievance of the petitioner with regard to correction/revision of the bills and determine the amount. The respondent no.4 shall also consider to grant installments for payment of the dues in terms of the provisions of Clause-6.5 and 6.14 of U.P. Electricity Supply Code,2005. The aforesaid exercise shall be completed by the respondent no.4 within a week from the date of presentation of a certified copy of this order before him. On deposit of the first instalment, the

electricity connection of the petitioner shall be restored immediately on payment of usual restoration charges by the petitioner.

With the aforesaid observations, the writ petition is **disposed of**.

Order Date :- 17.9.2020

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